

Now, therefore, be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Financing
of United
Kingdom
subscriptions.

1. There shall be paid out of the Consolidated Fund of the United Kingdom the sums required for the purpose of paying—

- (a) subscriptions to the International Monetary Fund equal to the proposed increase of the quota of the United Kingdom, that is to say, subscriptions equivalent to six hundred and fifty million United States dollars;
- (b) such amounts as may become payable to the International Bank for Reconstruction and Development in respect of the United Kingdom's shares in the proposed increase of capital stock, that is to say, amounts not exceeding the equivalent of thirteen hundred million United State dollars;

and the Treasury may, for the purpose of providing any sums to be paid under this Act out of the Consolidated Fund, or of providing for the replacement of sums so paid, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued for that purpose shall be deemed for all purposes to have been created and issued under that Act.

2 & 3 Geo. 6.
c. 117.

Short title.

2. This Act may be cited as the International Bank and Monetary Fund Act, 1959.

CHAPTER 18

Family Allowances and National Insurance Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Questions under the Family Allowances Act, 1945, and corresponding questions under other Acts.
2. Appeals and references from medical appeal tribunals to Industrial Injuries Commissioner.
3. Appeals from local appeal tribunals to Industrial Injuries Commissioner.
4. Provisions as to expenses.
5. Short title and citation.

SCHEDULE—Repeals.

An Act to amend the law with respect to the determination of questions requiring decision for the purposes of the Family Allowances Act, 1945, or the National Insurance Acts, 1946, and in connection therewith to modify the provision made by the said Act of 1945 as to the commencement and termination of allowances thereunder; and for other purposes connected with the matters aforesaid. [25th March, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the following provisions of the National Insurance Act, 1946 (which enable regulations to make provision with respect to the determination of claims and questions under that Act and matters connected therewith, and require the regulations to provide for questions as to the right to benefit to be determined by insurance officers or local tribunals, subject to appeal to the National Insurance Commissioner), that is to say, subsections (1), (3) and (5) of section forty-three of that Act, shall apply in relation to the determination of any question as to the right to an allowance under the Family Allowances Act, 1945, in respect of any person for any family as they apply in relation to the determination of questions as to the right to benefit:

Questions under the Family Allowances Act, 1945, and corresponding questions under other Acts.
9 & 10 Geo. 6. c. 67.
8 & 9 Geo. 6. c. 41.

Provided that, notwithstanding anything in subsection (3) of the said section forty-three, regulations under that section shall provide for the determination by the Minister of Pensions and National Insurance of the questions to be decided by him in his discretion under the Schedule to the Family Allowances Act, 1945 (that is to say, certain questions as to which of two persons is to be treated as maintaining a child, or in which of two families a child is to be treated as included).

(2) Subsection (1) and paragraphs (a) to (c) of subsection (2) of section forty-seven of the National Insurance Act, 1946 (which enable provision to be made by regulations with respect to matters arising pending the determination of questions as to the right to benefit, or arising out of the review of a decision under that Act, and similar matters), shall apply in relation to allowances under the Family Allowances Act, 1945, and decisions with respect to those allowances as they apply in relation to benefit and decisions with respect to benefit; and in subsection (2) of section forty-eight of the National Insurance Act, 1946 (which provides for recovering by deduction from other benefits sums recoverable by virtue of any provision of the Family Allowances Act, 1945, by deduction from payments under that Act), for the reference to any

provision of the Family Allowances Act, 1945, there shall be substituted a reference to any provision made for the purposes of that Act by regulations under the said section forty-seven.

Regulations made by virtue of this subsection may, notwithstanding anything in the Family Allowances Act, 1945, include provision as to the commencement of an allowance awarded for a family in respect of a child in respect of whom an allowance has under a previous award been payable for another family; and for the purposes of the said section forty-seven as applied by this subsection, the determination of any question as to the date at which, by virtue of section six of the Family Allowances Act, 1945, an allowance terminates or has terminated under an award shall be treated as a review of the award.

9 & 10 Geo. 6.
c. 62.

(3) Subsection (1) of this section shall have effect in relation to the determination of any question which for the purposes of the National Insurance Act, 1946, or of the National Insurance (Industrial Injuries) Act, 1946, is to be determined in like manner as the corresponding question arising under the Family Allowances Act, 1945.

(4) Section seventy-seven of the National Insurance Act, 1946 (which relates to the consideration of regulations under that Act by the National Insurance Advisory Committee), shall not apply to regulations made under section forty-three or forty-seven of that Act and containing only provisions having effect by virtue of subsections (1) and (2) of this section or by virtue of the operation of subsection (3) in relation to the National Insurance (Industrial Injuries) Act, 1946.

(5) Regulations made by virtue of this section may make such provision as appears to the Minister expedient in relation to cases pending at the time the regulations come into force, in relation to the review of and appeals from decisions given before they come into force, and in relation to other matters of a transitional nature; but, subject to any such provision, the enactments specified in Part I of the Schedule to this Act are, to the extent specified in the third column of that Schedule, hereby repealed as from the coming into force of regulations made by virtue of this section.

Appeals and
references from
medical appeal
tribunals to
Industrial
Injuries
Commissioner.

2.—(1) Subject as hereinafter provided, an appeal shall lie to the Industrial Injuries Commissioner from any decision of a medical appeal tribunal, on the ground that the decision is erroneous in point of law, at the instance of—

- (a) the claimant; or
- (b) an association of employed persons of which the claimant was a member at the time of the relevant accident; or
- (c) the Minister of Pensions and National Insurance.

(2) No appeal shall lie under subsection (1) of this section without the leave of the medical appeal tribunal or of the Commissioner, and regulations may make provision as to the manner in which, and the time within which, appeals are to be brought and applications made for leave to appeal.

(3) Where any question of law arises in a case before a medical appeal tribunal, the tribunal may refer that question to the Commissioner for his decision.

(4) On any such appeal or reference, the question of law arising for the decision of the Commissioner and the facts on which it arises shall be submitted for his consideration in the prescribed manner, and the medical appeal tribunal on being informed in the prescribed manner of his decision on the question of law shall give, confirm or revise their decision on the case accordingly.

(5) Section fifty of the National Insurance (Industrial Injuries) Act, 1946 (which provides for decisions of the Commissioner to be reviewed by an insurance officer or local appeal tribunal), shall not be taken to apply to a decision on an appeal or reference under this section.

(6) This section shall be construed as one with the National Insurance (Industrial Injuries) Act, 1946, and shall be treated as included in Part III of that Act for the purposes of any reference in that Act to that Part.

(7) This section shall not come into force until such date as the Minister may appoint by order made by statutory instrument and, so far as it relates to appeals to the Commissioner, shall not have effect in relation to decisions given before that date.

3.—(1) Leave shall not be required for any appeal under section forty-seven of the National Insurance (Industrial Injuries) Act, 1946, from a decision of a local appeal tribunal constituted for the purposes of that Act.

(2) Accordingly the enactments specified in Part II of the Schedule to this Act are, to the extent specified in the third column of that Schedule, hereby repealed.

Appeals from
local appeal
tribunals to
Industrial
Injuries
Commissioner.

4.—(1) Any payments which are made—

Provisions as
to expenses.

(a) under section forty-four of the National Insurance Act, 1946 (which relates to the remuneration of the National Insurance Commissioner and deputy Commissioners and other expenses in connection with the work of persons and tribunals appointed to determine questions under that Act); or

(b) under section forty-five of that Act or Part I of the Administration of Justice (Pensions) Act, 1950 (which provide pension and other benefits for Commissioners and deputy Commissioners and their widows and children);

14 & 15 Geo. 6.
c. 11.

and which but for this provision would fall to be paid and

borne in the manner provided by section thirty-eight of the National Insurance Act, 1946 (which provides for the payment of the expenses of government departments in carrying that Act into effect out of moneys provided by Parliament subject to reimbursement to the Treasury out of the National Insurance Fund), shall—

- (i) in so far as they are estimated by the Minister to be attributable to the operation of subsections (1) and (2) of section one of this Act in relation to the Family Allowances Act, 1945, be treated for the purposes of section twenty of the last mentioned Act as expenses incurred in the administration of it, and be left out of account under the said section thirty-eight; and
- (ii) in so far as they are so estimated to be attributable to the operation of subsection (3) of section one of this Act in relation to the National Insurance (Industrial Injuries) Act, 1946, be treated for the purposes of section sixty of the last mentioned Act as expenses incurred in carrying it into effect, and be left out of account under the said section thirty-eight.

(2) Any increase attributable to section one of this Act in the sums payable out of moneys provided by Parliament or out of the Consolidated Fund under any enactment referred to in subsection (1) of this section shall be paid in like manner.

(3) Any increase attributable to sections two and three of this Act in the sums payable out of moneys provided by Parliament or out of the Consolidated Fund in respect of payments under—

- (a) section fifty-three of the National Insurance (Industrial Injuries) Act, 1946 (which relates to the remuneration of the Industrial Injuries Commissioner and deputy Commissioners and other expenses in connection with the work of persons and tribunals appointed to determine questions under that Act); or
- (b) section fifty-four of that Act or Part I of the Administration of Justice (Pensions) Act, 1950 (which provide pension and other benefits for Commissioners and deputy Commissioners and their widows and children);

shall be paid in like manner.

Short title
and citation.

5. This Act may be cited as the Family Allowances and National Insurance Act, 1959, and, so far as it relates to the subject-matter of those Acts respectively may be cited—

- (a) together with the Family Allowances Acts, 1945 to 1956, as the Family Allowances Acts, 1945 to 1959; and
- (b) together with the National Insurance (Industrial Injuries) Acts, 1946 to 1957, as the National Insurance (Industrial Injuries) Acts, 1946 to 1959; and
- (c) together with the National Insurance Acts, 1946 to 1957, as the National Insurance Acts, 1946 to 1959.

SCHEDULE

Sections 1, 3.

REPEALS

PART I

REPEALS ARISING OUT OF S. 1 OF THIS ACT

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Geo. 6. c. 41.	The Family Allowances Act, 1945.	Section five, from the words "and any question" in subsection (1) onwards. In section six, the proviso to subsection (2) and subsection (5). In section eight, subsection (1), from the words "the Minister may require" onwards, subsections (2), (3) and (4), in subsection (5) the words "under this section", and subsections (6) and (7). In section seventeen, paragraph (c) of subsection (1). In section twenty-six, subsections (6) and (7).
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act, 1946.	In section thirty-six, in subsection (3), the words "or by the Family Allowances Act, 1945, as applied by paragraph (b) of subsection (1) of this section". In section fifty, in subsection (1), the words "under this Part of this Act or the Family Allowances Act, 1945". In section fifty-three, in subsection (2), sub-paragraph (iii) of paragraph (c), and the words "or proceedings" in paragraph (d). In section seventy-two, subsection (2) and in subsection (4), the words "or any such application for a reference or for a case to be stated has been made" and the words "or making such an application".
9 & 10 Geo. 6. c. 67.	The National Insurance Act, 1946.	In section forty-three, in subsection (2), the word "not" where first occurring. In section forty-four, in subsection (2), in paragraph (b), the words from "or on" to "1945", and in paragraph (c) the words from "or in" onwards.

PART II

REPEALS ARISING OUT OF S. 3 OF THIS ACT

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act, 1946.	In section forty-seven, the proviso to subsection (1) and subsections (3), (4) and (5).
1 & 2 Eliz. 2. c. 43.	The National Insurance (Industrial Injuries) Act, 1953.	In section four, subsection (5). In the Second Schedule, paragraph 6.

CHAPTER 19

Emergency Laws (Repeal) Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Repeal of enactments authorising continuation of Defence Regulations, etc.
2. Temporary continuation of certain Defence Regulations with modifications.
3. Temporary continuation with modifications of certain emergency powers of Minister of Supply.
4. Modification of emergency provisions with respect to transfer of ships.
5. Temporary saving for certain Defence Regulations.
6. Emergency provision to have permanent effect.
7. Expenses.
8. Northern Ireland.
9. Channel Islands and Isle of Man.
10. Short title, duration and repeals.

SCHEDULES

First Schedule—Amendments in Defence Regulations.

Second Schedule—Form in which Defence Regulations continue in force by virtue of s. 2.

Part A—The Defence (General) Regulations, 1939.

Part B—The Defence (Finance) Regulations, 1939.

Part C—The Defence (Armed Forces) Regulations, 1939.

Third Schedule—Supplementary provisions with respect to Defence Regulations.

Fourth Schedule—Repeals.